

SENATE BILL 2028

By Lowe

AN ACT to amend Tennessee Code Annotated, Section 39-17-1314; Section 70-1-206 and Section 70-4-107, relative to the authority of the Tennessee fish and wildlife commission to proscribe the manner and means of taking wildlife.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 39-17-1314, is amended by adding the following as a new subsection:

() Notwithstanding subdivision (b)(2) or another law to the contrary, a city, county, town, municipality, or metropolitan government shall not regulate the manner and means of taking wildlife, including the discharge of a firearm while lawfully hunting. Such manner and means of taking wildlife is regulated pursuant to rules promulgated and proclamations issued by the fish and wildlife commission under its delegated authority in title 70.

SECTION 2. Tennessee Code Annotated, Section 70-4-107(c), is amended by adding the following as a new subdivision:

() Upon proclamation by the commission, any person lawfully hunting under this act is expressly authorized to utilize the commission's authorized manner or means of taking wildlife, which may include the discharge of a firearm within the area so designated by the commission during the hunting season opened by the commission as long as the manner and means are consistent with other provisions of this title.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.